

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Theo Kaufman	Team: Squad #06	CCRB Case #: 202300301	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/11/2023 12:10 AM	Location of Incident: Over the phone	18 Mo. SOL 7/11/2024	Precinct: 83
Date/Time CV Reported Thu, 01/12/2023 12:06 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 01/12/2023 12:06 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Juan Morales	02247	952033	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Cory Shane	03749	952230	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Morales	Discourtesy: Sergeant Juan Morales acted discourteously toward § 87(2)(b)	A . Complainant Unavailable
B . SGT Juan Morales	Discourtesy: Sergeant Juan Morales spoke discourteously to § 87(2)(b)	B . Complainant Unavailable
C . SGT Juan Morales	Off. Language: Sergeant Juan Morales made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Complainant Unavailable

Truncation Case Summary

Search IAs: 1

Created by: Jessica Peña on 01/25/2023

Remarks Performed a Clear search. Clear search using full name. See IA 15.

Contact complainant/victim IAs: 7

Contact: Comp/Witness § 87(2)(b)

Created by: Theo Kaufman on 01/17/2023

Remarks: Called § 87(2)(b) at § 87(2)(b). Left a message requesting a call back.

Contact: Comp/Witness § 87(2)(b)

Created by: Theo Kaufman on 01/17/2023

Remarks: § 87(2)(b) called the undersigned to discuss her complaint. § 87(2)(b) called the police at 9:00pm to report her assault. Officers did not respond to her location until 1:30am. § 87(2)(b) and § 87(2)(b) § 87(2)(b) called the 83rd Precinct together three times and spoke with Sgt. Juan Morales. Sgt. Morales hung up on them, then 'screamed at' and 'berated' § 87(2)(b) and on the third call, called § 87(2)(b) a 'cunt'.

§ 87(2)(g)

will call back after obtaining consent from § 87(2)(b) to provide her phone number.

Contact: Comp/Witness § 87(2)(b)

Created by: Theo Kaufman on 01/20/2023

Remarks: Called § 87(2)(b) at § 87(2)(b). § 87(2)(b) has not yet had a chance to speak with § 87(2)(b) or ask to provide her number to the investigation.

Contact: Comp/Witness § 87(2)(b)

Created by: Theo Kaufman on 01/27/2023

Remarks: Called § 87(2)(b) at § 87(2)(b). Left a message requesting a call back to schedule a formal interview.

Contact: Comp/Victim § 87(2)(b)

Created by: Theo Kaufman on 01/27/2023

Remarks Called § 87(2)(b) the number is not accepting calls at this time. No recording.

Contact: Comp/Victim § 87(2)(b)

Created by: Theo Kaufman on 01/30/2023

Remarks (x2) Called § 87(2)(b), the number is not accepting calls at this time. No recording.

Contact: Comp/Witness § 87(2)(b)

Created by: Theo Kaufman on 01/30/2023

Remarks Called § 87(2)(b) at § 87(2)(b). § 87(2)(b) cannot provide a statement at this time, § 87(2)(b)

Contact: Comp/Victim § 87(2)(b)

Created by: Theo Kaufman on 02/01/2023

Remarks (x3) Called § 87(2)(b), the number is not accepting calls at this time. No recording.

Contact: Comp/Victim § 87(2)(b)

Created by: Theo Kaufman on 02/03/2023

Remarks (x4) Called § 87(2)(b), the number is not accepting calls at this time. No recording.

Contact: Comp/Victim § 87(2)(b)

Created by: Theo Kaufman on 02/06/2023

Remarks (x5) Called § 87(2)(b), the number is not accepting calls at this time. No recording.

Contact: Comp/Witness § 87(2)(b)

Created by: Theo Kaufman on 02/17/2023

Remarks Called § 87(2)(b) at § 87(2)(b) § 87(2)(b) would like to speak with Sgt. Morales'

CCRB Case # 202300301

supervisor, and wants Sgt. Morales fired. § 87(2)(b) would like this complaint referred to IAB, but would not like to withdraw her complaint from the CCRB until someone from IAB contacts her. § 87(2)(b) was informed that a referral would be made to IAB regarding her complaint. § 87(2)(b) stated that she "does not have the patience or the time" to discuss her complaint and says it would be a waste of her time unless it is going to result in Sgt. Morales being fired. § 87(2)(b) would like to give a statement to Sgt. Morales' supervisor. § 87(2)(b) was informed that the CCRB could not guarantee any outcomes to her complaint.

Letters/Correspondence IAs: 4

Document List:

First please call letter to c/v - ADR eligible to Comp/Victim § 87(2)(b) Created 01-20-2023 by Theo Kaufman

Final please call letter to c/v - ADR eligible to Comp/Victim § 87(2)(b) Created 01-27-2023 by Theo Kaufman

First please call letter to c/v - ADR eligible to Comp/Victim § 87(2)(b) Created 03-03-2023 by Theo Kaufman

Final please call letter to c/v - ADR eligible to Comp/Victim § 87(2)(b) Created 03-10-2023 by Theo Kaufman

Letters/Correspondence IA created by: Theo Kaufman on 01/20/2023

Remarks Sent first please call letter to § 87(2)(b)

Letters/Correspondence IA created by: Theo Kaufman on 01/27/2023

Remarks Sent final please call letter to § 87(2)(b)

Letters/Correspondence IA created by: Theo Kaufman on 03/03/2023

Remarks Sent first please call letter to § 87(2)(b) via mail.

Letters/Correspondence IA created by: Theo Kaufman on 03/10/2023

Remarks Sent final please call letter to § 87(2)(b) by email and by mail.

Civilian Interview Scheduled IAs: 0

Civilian Interview Missed IAs: 0

Truncation Report Remarks:

Both § 87(2)(b) and § 87(2)(b) are complainants.

§ 87(2)(b) is a complainant witness. The investigation made contact with § 87(2)(b) who would not provide a phone number for § 87(2)(b). After repeated contact attempts, § 87(2)(b) was uncooperative with attempts to obtain a statement. § 87(2)(b) stated that she would like to speak with Sgt. Morales' supervisor. § 87(2)(b) stated that she would wait to speak with someone from the NYPD but requested that her complaint not be withdrawn until she had spoken with someone. § 87(2)(g)

§ 87(2)(b) is a complainant victim. § 87(2)(b) did not provide a phone number or mailing address, only an email address. A CLEAR search for § 87(2)(b) yielded a possible address, and a phone number. Five calls, three emails, and two letters were sent to § 87(2)(b) and she has not responded to any attempts to contact her.

Therefore, it is recommended that this complaint be closed as **Complainant Unavailable**.

Squad No.: 6

Investigator:	<u>Theo Kaufman</u>	<u>Investigator Theo Kaufman</u>	<u>03/21/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Pena</u>	<u>IM Jessica Pena</u>	<u>3/21/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date